

OHCHR: Rabat Plan of Action

Article 1: Freedom of Expression vs. Incitement

The Rabat Plan of Action addresses the distinction between freedom of expression and incitement to national, racial, or religious hatred.

Article 2: The Six-Part Threshold Test

To determine if speech crosses the threshold into criminal incitement, six factors must be considered: context, speaker, intent, content and form, extent of the speech act, and likelihood of harm.

Section 1: Application to AI

AI-generated content that promotes religious, ethnic, or national hatred, or that uses derogatory slurs aimed at specific communities, meets the threshold for harm and must be mitigated by responsible AI governance frameworks.